

Jay Prakash v. Executive Engineer (City), U.P. Power Corp. & Ors.

High Court of Judicature at Allahabad · Division Bench · 23 July 2010 · Writ-C No. 42588 of 2010 · **Writ dismissed; petitioner relegated to clause 7.10 Grievance Redressal Committee.**

HEADNOTE

A consumer writ against the Executive Engineer (City), U.P. Power Corporation, was dismissed because a Grievance Redressal Committee had been constituted under clause 7.10 of the U.P. Electricity Supply Code, 2005. The petitioner was relegated to file his case before that Committee. The Court did not examine the merits of the supply grievance.

FACTUAL SUMMARY

Jay Prakash filed Writ-C No. 42588 of 2010 in the Allahabad High Court against the Executive Engineer (City), U.P. Power Corporation Limited, and others. The petition was heard on 23 July 2010 by a Division Bench of Prakash Chandra Verma and Ram Autar Singh, JJ. Counsel for both sides were heard. The order does not record the nature of the consumer's supply or billing complaint. The Court proceeded on the existence of a statutory Grievance Redressal Committee for electricity consumers.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::7.10

[grievance-redressal-committee-alternate-remedy](#)

HOLDING

Where a Grievance Redressal Committee has been constituted under clause 7.10 of the U.P. Electricity Supply Code, 2005, a consumer writ petition is dismissed and the petitioner is relegated to file his case before that Committee. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE CONSUMER'S ELECTRICITY GRIEVANCE

The writ was dismissed solely on the availability of the clause 7.10 Grievance Redressal Committee; the underlying complaint was not examined. ¶ 1